

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB3 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Reading Clerk

Amendment submitted by: TJ Marti

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED POLICY
COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 3

By: Green and Hamilton of the
Senate

and

Marti of the House

PROPOSED POLICY COMMITTEE SUBSTITUTE

[hemp - industrial hemp - Oklahoma Industrial Hemp -
definition - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 3-402, as
last amended by Section 1, Chapter 266, O.S.L. 2024 (2 O.S. Supp.
2025, Section 3-402), is amended to read as follows:

Section 3-402. As used in the Oklahoma Industrial Hemp Program:

1. "Department" means the Oklahoma Department of Agriculture,
Food, and Forestry;

2. "Fiber" means the stalk of the industrial hemp plant and
does not include the flower or seeds of the plant;

1 3. "Flower" means the part of the industrial hemp plant that
2 contains the majority of the industrial hemp plant's
3 tetrahydrocannabinol and other cannabinoids;

4 4. "Grain" means all of the parts of an industrial hemp plant
5 except the stalk or the flower of the industrial hemp plant;

6 5. "Handling" means possessing or storing industrial hemp for
7 any period of time on premises owned, operated or controlled by a
8 person licensed to cultivate or process industrial hemp and also
9 includes possessing or storing industrial hemp in a vehicle for any
10 period of time other than during its actual transport from the
11 premises of a licensed person to cultivate or process industrial
12 hemp to the premises of another licensed person;

13 6. "Industrial hemp" or "hemp" means the plant *Cannabis sativa*
14 L. and any part of the plant, including the seeds thereof, and all
15 derivatives, extracts, cannabinoids, isomers, acids, salts and salts
16 of isomers, whether growing or not, with a total delta-9
17 tetrahydrocannabinol concentration of not more than three-tenths of
18 one percent (0.3%) on a dry-weight basis, as defined in 7 U.S.C.,
19 Section 1639, as amended by Section 781 of Public Law 119-37.
20 Furthermore, industrial hemp means hemp that is grown for the use of
21 the stalk, whole grain, oil, cake, nut, hull, or any other
22 noncannabinoid derivative of the seeds, or for fiber, or for
23 immature plants, such as microgreens or other edible leaf products,
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1 or for research purposes by an institution of higher education that
2 does not enter the stream of commerce;

3 7. "Key participant" means a person who has a direct or
4 indirect financial interest in the entity producing hemp, such as an
5 owner or partner in a partnership. A key participant includes an
6 individual who is part of a corporate entity or a tribal-owned
7 corporation. A key participant also includes an executive-level
8 individual such as a chief executive officer, chief operating
9 officer, or chief financial officer. Such term shall not include
10 such management personnel as a farm, field, or shift manager or a
11 member of the leadership of a tribal government who is acting in his
12 or her capacity as a tribal leader except when such member exercises
13 executive managerial control over hemp production;

14 8. "Licensee" means a person who holds a valid Industrial Hemp
15 License to grow industrial hemp under the Oklahoma Industrial Hemp
16 Program. A licensee shall have the ability to remediate
17 noncompliant industrial hemp with a total delta-9
18 tetrahydrocannabinol concentration of not more than one percent
19 (1.0%) on a dry-weight basis for retesting as set forth by the
20 Department as long as the noncompliant industrial hemp has a total
21 delta-9 tetrahydrocannabinol concentration of not more than three-
22 tenths of one percent (0.3%) on a dry-weight basis after retesting,
23 and the option to remediate the industrial hemp through the
24 reasonable destruction of the flower or shredding of the entire lot

1 into a homogeneous biomass results in the remediation of any part of
2 the industrial hemp plant that is above three-tenths of one percent
3 (0.3%) on a dry-weight basis. All noncompliant hemp must be tracked
4 and documented. The State Board of Agriculture shall have
5 jurisdiction over such remediation, which includes, but is not
6 limited to, destruction through composting, burning, or other
7 regulated disposal methods if the industrial hemp is not remediated
8 into a final product before processing below three-tenths of one
9 percent (0.3%) on a dry-weight basis;

10 9. "License" means authorization by the Department for any
11 person to grow and cultivate industrial hemp on a registered land
12 area as part of the Oklahoma Industrial Hemp Program; and

13 10. "Processing" means converting industrial hemp into a
14 marketable form, including the production of all derivatives,
15 extracts, cannabinoids, isomers, acids, salts, and salts of isomers.

16 SECTION 2. This act shall become effective November 1, 2026.
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18 60-2-17285 JL 04/02/26
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